

BC624989 BC624989

County: los-angeles

Division: Civil Law and Motion

Department: 730

Hearing date: 2026-07-28

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C730%2C07%2F28%2F2026

Source SHA-256: 392090f19f47c40584ad6e787581348fb3e4d8dfaa5935c692279a9141d1d4bf

Case Number: BC624989 Hearing Date: July 28, 2026 Dept: 730

Superior Court of

California

County of Los Angeles

Department

730

BIGGINSLAW

INC.,

Plaintiff,

vs.

ODINAMBA

CULTURAL ASSOCIATION, INC., et al.,

Defendants.

Case No.:

BC624989

Hearing

Date:

July 28,

2026

ORDER
DENYING MOTION FOR SANCTIONS

I. BACKGROUND

Pursuant to contract,
Plaintiff Bigginlaw, Inc. ("Bigginlaw") allegedly provided professional services to Defendants Odinamba Cultural Association ("OCA") and Okwii Agbo ("Agbo"), for which Defendants never paid. Bigginlaw sued Defendants for breach of contract.

On November 14, 2016, the
Court entered default judgment against Agbo. Bigginlaw renewed judgment against Agbo on September 8, 2020.

On March 30, 2026,
Bigginlaw filed the instant motion for sanctions, requesting the Court impose issue preclusion sanctions, evidentiary sanctions, further monetary sanctions, and an order compelling code-compliant responses, along with further written responses. No party has filed an opposition.

II. LEGAL STANDARD

Code of Civil Procedure
section 2023.030[1]
gives the court the discretion to impose sanctions against anyone engaging in a misuse of the discovery process. A court has broad discretion in selecting the appropriate penalty. (See *Lopez v. Watchtower Bible and Tract Society of New York, Inc.* (2016) 246 Cal.App.4th 566, 604.)

When a party violates a
discovery order, a trial court may prohibit the violating party from introducing evidence at trial that contradicts the opponent's claims or supports the violating party's defenses.
(*Juarez v. Boy Scouts of America* (2000) 81 Cal.App.4th 377, 387.)
Evidentiary sanctions may be imposed only after a motion to compel is made and granted and the party to be sanctioned has failed to comply with that order. (*Karlsson v. Ford Motor Co.*

(2006) 140 Cal.App.4th 1202, 1214.)

However, violation of a discovery order is not a prerequisite to evidentiary sanctions when the offending party has engaged in a pattern of willful discovery abuse that causes the unavailability of evidence. (Id. at pg. 1215.)

Sanctions are not to be imposed for punishment purposes but instead are used to encourage fair disclosure of discovery to prevent unfairness resulting for the lack of information. (See *Midwife v. Bernal* (1988) 203 Cal.App.3d 57, 64 [superseded on other grounds as stated in *Kohan v. Cohan* (1991) 229 Cal.App.3d 967, 971].)

III. discussion

Bigginlaw requests the Court impose issue preclusion sanctions, evidentiary sanctions and further monetary sanctions, as Agbo allegedly failed to comply with the Court's January 5, 2026, order. Pursuant to section 2023.030, the Court may impose sanctions for engaging in conduct constituting misuse of the discovery process. Misuse of the discovery process includes failing to respond to or submit to an authorized method of discovery and disobeying a court order to provide discovery. (§ 2023.010, subd. (d) and (f).)

On August 13, 2025, Bigginlaw served post-judgment requests for production ("RPD") on Agbo. (See January 5, 2026, Minute Order.) Bigginlaw filed a motion to compel responses to the RPD, which the Court granted on January 5, 2026. (Ibid.) The Court ordered Agbo to serve verified responses, without objections, within 30 days of notice of the order. (Ibid.) Notice of the order was served on January 15, 2026. (Mot., Biggin Decl. ¶ 5, Ex. A.)

On February 17, 2026, Agbo served verified responses. (Mot., Biggin Decl. ¶ 7, Ex. C.) A portion of the verified responses were as follows: "After a diligent search, responding party has determined that the requested documents either do not exist or responding party does not know the whereabouts of the documents and/or does not have access to to the requested documents," failing to comply with the specific requirements of section 2031.230. (Ibid.) Other responses consisted of one-word responses, with no indication of intent to produce certain documents. No documents were produced with written responses. (Ibid.)

Following meet and confer efforts, Agbo served 201 pages of documents on March 26, 2026. (Mot., Biggins Decl. ¶ 11, Ex. D.) Certain documents were produced out of order and redacted, while others were not produced at all. (Ibid.) This motion was filed four days later.

Based upon the facts alleged, the Court does not find sufficient grounds to issue evidentiary, issue, or further monetary sanctions. As currently alleged, there is no indication of substantive failure to comply with discovery obligations, creating a pattern indicating Bigginslaw will be unable to obtain discovery. The only discovery at issue is the allegedly insufficient RPD responses.

Bigginslaw's account clearly demonstrates that Agbo served verified responses, without objections; Agbo also provided documentation, albeit at a later date. The issue is to the quality and extent of compliance. When initial discovery responses have been produced, but the party receiving the responses finds them insufficient, the appropriate motion is a motion to compel further discovery. Sanctions are not to be imposed for punishment purposes but instead are used to encourage fair disclosure of discovery to prevent unfairness resulting for the lack of information. (See *Midwife v. Bernal* (1988) 203 Cal.App.3d 57, 64.) Here, Agbo, in part, complied with the Court order by serving responses. If a party continues to produce deficient responses after a court has granted such a motion and ordered additional responses, then the Court may consider issuing sanctions that impact a party's ability to advocate for themselves.

Similarly, the Court will not set an OSC re: Contempt as the issue is not of compliance, but of the quality of compliance. The Court will also not rule on the issue of further responses, as that must be done via noticed motion, which should only be heard after parties attend an IDC.

Therefore, the Court denies the motion.

IV. CONCLUSION

Plaintiff Bigginslaw, Inc.'s motion for sanctions is DENIED.

Agbo is ordered to give notice.

DATED:

July 28, 2026

Hon. Alexander C.D. Giza

Judge of the Superior Court

PLEASE

TAKE NOTICE:

- Parties

are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.

- If a

party intends to submit on this tentative ruling, the party must send an email to the court at with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.

- Unless

all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.

- If

the parties neither submit nor appear at hearing, the Court may take the motion off calendar or adopt the tentative ruling as the order of the Court. After the Court has issued a tentative ruling, the Court may prohibit the withdrawal of the subject motion without leave.

[1] Undesignated

statutory references are to the Code of Civil Procedure.